Counsel is well within their rights in raising concerns about the fairness of proceedings and the tampering of witnesses who appear for the prosecution. This is a jurisdictional question for the tribunal. Approvers kept in police custody, rather than in judicial custody, risk being pressured in exactly the manner in which the two approvers were, who were to appear for the prosecution, when they decided to retract their statements. The magistrate had living proof before him. Still he chose not to place the approvers in judicial custody. Still he persistently and consistently rejected applications from the accused to do so. The fact that counsel for the defence was then chastised for wanting to assume 'jurisdiction' so as 'to dictate to the court' shows the magistrate was mangling up important legal concepts in a wholly inappropriate manner to refuse an application, which was unanswerable. The refusal of this application through the use of such extravagantly inapt language only served to create the impression which the magistrate would wish to have avoided, namely, that the approvers were indeed being interfered with.

Such an impression was difficult to dispel because, not only were the proceedings before the magistrate's hearing then abruptly stopped after ten months and transferred to the special tribunal, but in those proceedings Mr Justice Hilton alone served throughout the time that the case was being heard. He did not intervene to ensure that the trial proceedings were conducted fairly at any stage. He was the only judge to have first-hand knowledge of how key witnesses for the prosecution retracted their statements. The other judges on the panel were in no position to discuss the frailties of the evidence. They had not been privy to all that had transpired during the hearings. What were the frailties of this evidence? One does not have to look far to see them. The government was represented by C.H. Carden Noad in the tribunal, just as was the case in the magistrate's court. He was accompanied by Khan Saheb Kalandar Ali Khan, the public prosecutor, and L. Gopal Lal.

There was no defence counsel in place for Bhagat Singh because he had chosen to represent himself. However, according to the record of proceedings, he had decided to 'put in an application stating that he wanted